

PLE5015: PROFESSIONAL CONDUCT AND PRACTICE

Effective Term

Semester A 2025/26

Part I Course Overview

Course Title

Professional Conduct and Practice

Subject Code

PLE - Professional Legal Education

Course Number

5015

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

One Semester

Credit Units

3

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Nil

Precursors

Nil

Equivalent Courses

Nil

Exclusive Courses

Nil

Part II Course Details

Abstract

This course aims:

(1) To provide the student with a sound understanding of his/her professional and ethical responsibilities and to apply that understanding in the course of practice. (2) To provide the student with some basic and particular skills often required in practice.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	Explain what are the standards of professional conduct and responsibility and maintenance of solicitors' accounts required of lawyers practising in Hong Kong.		x		
2	Identify professional responsibility and solicitors' accounts issues when they arise in a legal matter.		x		
3	Analyse and suggest possible resolution of those issues in the context of a legal matter.			x	
4	Communicate effectively this analysis and, if necessary, act upon that analysis and suggest an appropriate resolution.			x	
5	Discover what it means to be a professional lawyer.				x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs		Brief Description	CILO No.	Hours/week (if applicable)
1	1	Teaching and learning will be based upon preparation by the students, overviews by the teacher and exercises for analysis and discussion in the large group sessions, problem analysis in the small group sessions and workshops involving team activity, simulated practice activity, and team presentations.	1, 2, 3, 4, 5	

Continuous Assessment (%)

0

Examination (%)

100

Examination Duration (Hours)

3

Minimum Examination Passing Requirement (%)

50

Additional Information for ATs

Mid-term Examination (Exam duration: 45 minutes) (CILO No. 1,2,3,4).

Examination at the end of Semester A (Exam duration: 3 hours) (CILO No. 1,2,3,4,5)

The use of Generative AI tools is not allowed.

Assessment Rubrics (AR)**Assessment Task**

Mid-term Examination (Solicitors' Accounts)

Criterion

The Professional Conduct and Practice component constitutes 80% of the exam and the Solicitors' Accounts components constitutes 20% of the exam. To pass this course students must obtain marks of 50% in both the Solicitors' Accounts and the Professional Conduct and Practice components. A failure to obtain such passes of 50% in these components will necessitate taking a re-sit in either one or both components, where failed, by way of supplementary exam or exams (where relevant).

Excellent

(A+, A, A-) The exam evidences:

- A superior grasp of the issues and the subject matter in the relevant components of Professional Conduct and Practice and Solicitors' Accounts
- A strong capacity to analyse and synthesize professional conduct and solicitors' accounts issues as a lawyer would in practice
- Possession of a wide knowledge base of the authorities taught in the Course

Good

(B+, B, B-) The exam evidences:

- A strong grasp of the issues and the subject matter in the relevant components of Professional Conduct and Practice and Solicitors' Accounts
- A good capacity to analyse and synthesize professional conduct and Solicitors' Accounts issues as a lawyer would in practice
- A good understanding of the applicable authorities taught in the Course

Fair

(C+, C, C-*) The exam evidences:

- An adequate grasp of the issues and the subject matter in the relevant components of Professional Conduct and Practice and Solicitors' Accounts
- A fundamental capacity to analyse and synthesize professional conduct and Solicitors' Accounts issues as a lawyer would in practice
- A fundamental understanding of the applicable authorities taught in the Course

Marginal

(D*)

Failure

(F) The exam does not evidence a fundamental:

- issues and the subject matter in the relevant components of Professional Conduct and Practice and Solicitors' Accounts
- capacity to analyse and synthesize professional conduct issues as a lawyer would in practice
- understanding of the applicable authorities taught in the Course

Assessment Task

Examination at the end of Semester A (Professional Conduct and Practice)

Criterion

The Professional Conduct and Practice component constitutes 80% of the exam and the Solicitors' Accounts components constitutes 20% of the exam. To pass this course students must obtain marks of 50% in both the Solicitors' Accounts and the Professional Conduct and Practice components. A failure to obtain such passes of 50% in these components will necessitate taking a re-sit in either one or both components, where failed, by way of supplementary exam or exams (where relevant).

Excellent

(A+, A, A-) The exam evidences:

- A superior grasp of the issues and the subject matter in the relevant components of Professional Conduct and Practice and Solicitors' Accounts
- A strong capacity to analyse and synthesize professional conduct and solicitors' accounts issues as a lawyer would in practice
- Possession of a wide knowledge base of the authorities taught in the Course

Good

(B+, B, B-) The exam evidences:

- A strong grasp of the issues and the subject matter in the relevant components of Professional Conduct and Practice and Solicitors' Accounts
- A good capacity to analyse and synthesize professional conduct and Solicitors' Accounts issues as a lawyer would in practice
- A good understanding of the applicable authorities taught in the Course

Fair

(C+, C, C-*) The exam evidences:

- An adequate grasp of the issues and the subject matter in the relevant components of Professional Conduct and Practice and Solicitors' Accounts
- A fundamental capacity to analyse and synthesize professional conduct and Solicitors' Accounts issues as a lawyer would in practice

- A fundamental understanding of the applicable authorities taught in the Course

Marginal

(D*)

Failure

(F) The exam does not evidence a fundamental:

- issues and the subject matter in the relevant components of Professional Conduct and Practice and Solicitors' Accounts
- capacity to analyse and synthesize professional conduct issues as a lawyer would in practice
- understanding of the applicable authorities taught in the Course

Additional Information for AR

* Note: The University's grades C- and D are not used in the PCLL.

Part III Other Information

Keyword Syllabus

Professional Conduct:

- Introduction to Professional Conduct Course
- Ethical Responsibilities of Hong Kong lawyers
- Lawyers' Instructions and Retainers
- Confidentiality and Legal Professional Privilege
- Remuneration of Lawyers
- Legal Aid and Practice Promotion
- Lawyers' obligations to third parties
- Partnerships and Chambers
- Conflicts of Interest and of Duties
- Duties to the Court and the Advocate's duties to clients and third parties
- Disciplinary Procedures
- Anti-Money Laundering and Anti-terrorist-financing

Solicitors' Accounts:

- Introduction to Solicitors' Accounts
- Client Accounting
- Definitions of client, client money, client account
- Receipt of Client Money
- Split Cheques
- Withdrawal of Client Money
- Disbursements
- Restrictions, Exceptions and Errors
- Interest on Client Account
- Firm Management

Reading List

Compulsory Readings

Title	
1	The Desk Books and Course Materials Professional Conduct and Practice and Solicitors' Accounts. They also contain recommended references.
2	Hong Kong Solicitors' Guide to Professional Conduct Volume 2: (1) Solicitors' Accounts Rules (Cap.159F), Chapter 15; (2) Guidelines for Accounting Procedures and Systems (Practice Direction K), Chapter 24; (3) Interest on Client' s Account (Practice Direction J), Chapter 24
3	The Law Society of Hong Kong - Manual on Solicitors' Accounting (Law Society Resource Centre, Other Publications)

Additional Readings

Title	
1	The Law Society and Bar Association Websites
2	Bilingual Laws Information System HK Ordinances and Subsidiary Legislation (http://www.legislation.gov.hk/eng/home.htm)
3	HK Legal Information Institute: http://www.hklii.org/
4	Michael Wilkinson & Michael Sandor, Professional Conduct of Lawyers in Hong Kong (Lexis Advance: April 2025)